Only substantially responsive bids shall be considered for further evaluation.

26.3 If a bid is not substantially responsive, it will be rejected by the Employer, and may not subsequently be made responsive by correction or withdrawal of then on-conforming deviation or reservation. The Employer may, however, seek confirmation / clarification in writing which shall be responded in writing.

IB.27 Correction of Errors

27.1 Bids determined to be substantially responsive will be checked by the Employer for any arithmetic errors and where there is a discrepancy between the amounts in figures and in words, the amount in words will govern.

27.2 The amount stated in the Form of Bid will be adjusted by the Employer in accordance with the above procedure for the correction of errors and with the concurrence of the bidder, shall be considered as binding upon the bidder. If the bidder does not accept the corrected Bid Price, his Bid will be rejected, and the Bid Security shall be forfeited in accordance with Sub- Clause 15.6(b) hereof.

IB.28 Evaluation and Comparison of Bids

28.1 The Employer will evaluate and compare only those Bids which are substantially responsive in accordance with Clause IB.26.

28.2 In evaluating the Bids, the Employer will determine for each Bid the evaluated Bid Price by adjusting the Bid Price for errors pursuant to Clause IB.27 and excluding Provisional Sums and provisions (if any) for contingencies.

28.3 The estimated effect of the price adjustment provisions of the Conditions of Contract due to Variation, applied over the period of execution of the Contract, shall not be taken into account in Bid evaluation.

F. AWARD OF CONTRACT

IB.29 Award

29.1 Subject to Clauses IB.30 and IB.34, the Employer will award the Contract to the bidder whose bid has been determined by the Employer to be substantially responsive to the Bidding Documents and who has offered the lowest evaluated Bid Price, provided that such bidder has been determined to be eligible in accordance with the provisions of Clause IB.3 and qualify pursuant to criteria provided in the Bidding Documents.

29.2 The Employer, at any stage of the bid evaluation, having credible reasons for op*tima facie* evidence of any defect in supplier's or contractor's capacities, may require the suppliers or contractors to provide information concerning their professional, technical, financial, legal or managerial competence whether already pre-qualified or not:

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Provided that such qualification shall only be laid down after recording reasons therefor in writing. They shall form part of the records of that bid evaluation report.

IB.30 The Employer's Right to Reject any or all Bids

30.1 Notwithstanding anything contained herein, the Employer reserves the right to annul the bidding process and reject all bids, at any time prior to award of Contract, without thereby incurring any liability to the affected bidders or any obligation except that the grounds for rejection of all bids shall upon request be communicated to any bidder who submitted a bid, without justification of grounds. Rejection of all bids shall be notified to all bidders promptly.

IB.31 Notification of Award

31.1 Prior to expiration of the period of bid validity prescribed by the Employer, the Employer will notify the successful bidder in writing ("Letter of Acceptance") that his Bid has been accepted. This letter shall name the sum which the Employer will pay the Contractor in consideration of the execution and completion of the Works by the Contractor as prescribed by the Contract Agreement (hereinafter and in the Conditions of Contract called the "Contract Price").

31.2 No Negotiation with the bidder having evaluated as lowest responsive or any other bidder shall be permitted.

31.3 The notification of award and its acceptance by the bidder will constitute the formation of the contract, binding the Employer and the bidder till signing of the formal Contract.

31.3 Upon furnishing by the successful bidder of a Performance Security, the Employer will promptly notify the other bidders that their Bids have been unsuccessful and return their bid securities.

IB.32 Performance Security

32.1 The successful bidder shall furnish to the Employer a Performance Security in the form and the amount stipulated in the Bidding Data and the Conditions of Contract within a period of seven(7) working days after the receipt of Letter of Acceptance.

32.2 Failure of the successful bidder to comply with the requirements of Sub-Clause IB.32.1 or Clauses IB.33 or IB.35 shall constitute sufficient grounds for the annulment of the award and forfeiture of the Bid Security.

IB.33 Signing of Contract Agreement

33.1 Simultaneously with the furnishing of acceptable Performance Security under the Conditions of Contract, the formal Contract Agreement between the Employer and the Successful Bidder(s) shall be executed.

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IB.34 General Performance of the Bidders

The Employer reserves the right to obtain information regarding performance of the bidders on their previously awarded contracts/works. The Employer may in case of consistent poor performance of any Bidder as reported by the employers of the previously awarded contracts, interalia, reject his bid and/or take such action as may be deemed appropriate under the circumstances of the case including black listing of such Bidder.

IB.35 Integrity Pact

The Bidder shall sign and stamp the Integrity Pact provided at Appendix-E to Bid in the Bidding Documents for all Federal Government procurement contracts exceeding Rupees ten million. Failure to provide such Integrity Pact shall make the bidder non-responsive.

IB.36 Instructions not Part of Contract

Bids shall be prepared and submitted in accordance with these Instructions which are provided to assist bidders in preparing their bids, and do not constitute part of the Bid or the Contract Documents.

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BIDDINGDATA

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BIDDING DATA

The information in this section is complementary to, amends or supplements the provisions in the Instructions to Bidders. Whenever there is conflict, the provisions herein shall take precedence over those in the Instructions to Bidders.

Reference to instruction to Bidder	Bidding Data
IB-I 1.1	**Name of the Project & Summary of the Works** "Supply, Installation, Testing, Commissioning & O&M of 400KW net metering based On grid Solar PV System" on 02xPakring at COMSATS University Islamabad (CUI) Attock Campus. The Works shall be performed/executed as per the Specifications provided In the Bidding Documents and approved Contractor's Design as per the Conditions of Contract".
1.1	**Name and Address of Employer** COMSATS University Islamabad Attock Campus (CUI), University Road, Farooq Azam Colony Attock City, Punjab, Pakistan.
IB-10 10.1	**Bid Language:** English
IB-11 11.1	**11.1 (A)** The Bidder shall submit with its Technical Bid the following documents: (a) Letter of Technical Bid (b) Bid Security (IB.15) (c) Written confirmation authorizing the signatory of the Bid to commit the Bidder(IB.18.5) (d) Proposed Construction Schedule (Appendix-A) (e) List of Sub-Contractors (as required) (Appendix-B) (f) Past Experience and Financial Strength (Appendix-C) (g) Joint Venture Agreement (if applicable) (Appendix-D) (h) Integrity Pact (Appendix-E) (i) Proof of purchase of Bidding Documents (Appendix-F) (j) Copy of PEC Certificate (Appendix-G) (k) Declaration of Beneficial Ownership (Appendix-H) (l) Affidavit of Blacklisting (Appendix-I) (m) Specific System Data Checklist (Appendix-J) **11.1 (B)** The Bidder shall submit with its Price Bid the following documents: (a) Letter of Price Bid (b) Bill of Quantities (BOQ) (Appendix-K) (c) 02x Parking Shed Drawings and Design Reports (Appendix-L)
IB-12	**Bid Evaluation Criteria shall be as follows:** Lump sum lowest evaluated price for the supply, installation, testing, Commissioning & O&M of the Works.

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IB-14 **14.1**	**<u>Bid Validity</u>** Period of Bid Validity shall be one hundred and twenty days (120) days from the date of Bid Opening.
IB-15 **15.1**	**<u>Bid Security</u>** Amount of Bid Security shall be PKR 1,200,000/- (1.2M)
IB-17 **17.1**	**<u>Pre-Bid Meeting</u>** The Pre-Bid meeting will be held on September 03, 2026 at 1100 Hours at CUI Attock Campus, Attock City, and Punjab.
IB-19 **19.2** **(a)**	**<u>Address for the purpose of Bid submission:</u>** COMSATS University Islamabad (CUI) Attock Campus, University road, Farooq Azam Colony Attock City Punjab Pakistan.
IB-20 **20.1**	**<u>Deadline for submission of Bids:</u>** As notified in the invitation for Bids.
IB-32 **32.1**	**<u>Performance Security:</u>** 10% of the Contract Price. The Performance security shall be an irrevocable & unconditional bank guarantee from any Scheduled Bank in Pakistan acceptable to the Employer strictly as per Form of Performance Security provided in the Bidding Documents.
	Following clauses are added in Instructions to Bidders: **IB.37 Sufficiency of Bid** Each Bidder shall be deemed to have satisfied fully, before submitting the Bid, as to all aspects of the Works, correctness and sufficiency of his Bid and price stated in the Price Bid which price shall, except in so far as it is otherwise expressly provided in the Contract Agreement, cover all his obligations under the Contract Agreement and all matters and things necessary for the proper completion of Works. Objections, excuses or claims made by the bidder after submission of his Bid to the Employer shall not be entertained. **IB.38 Sub-Contractors** Any Sub-Contractor is subject to the acceptance of the Employer and the Sub-Contract shall be subject to the same Conditions of Contract as the main Contract. A list, as set forth in Appendix "B" showing the name and address and credentials of each proposed sub-Contractor, the type of work to be sub-let and the reason for sub-letting shall be submitted with the Bid. Overall responsibility of all Works, whether parts of it subcontracted or not, shall rest with the Bidder. **IB.39 Taxes & Duties** The Bidder shall obtain all information as to Pakistan Income Tax, Sales Tax, Salaries Tax, Professional Tax, Company Tax, Municipal Octroi, Levies and any other taxes imposed by the local bodies, export and import duties, import surcharge, iqra surcharge, etc. and necessary permits and confirm the requirements thereof at his own responsibility and include all such cost in his Bid price. The quoted rate shall also include the cost of accepting the general risks/liabilities and obligations set forth or implied in the Contract. **IB.40 Insurance** The Bidder shall estimate the amounts required to be provided for all the insurances under the Contract from National Insurance Company Limited (NICL), Pakistan in accordance with the laws applicable in Pakistan and the Bid Price shall be deemed to include all such amounts. **IB.41 Indexation Deleted**

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CONDITIONS OF CONTRACT

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CONDITIONS OF CONTRACT

1. GENERAL PROVISIONS

1.1 Definitions

In the Contract as defined below, the words and expressions defined shall have the following meanings assigned to them, except where the context requires otherwise:

The Contract

1.1.1 "Contract" means the Contract Agreement and the other documents listed therein.

1.1.2 "Specifications" means the minimum specifications of the equipment being parts of the net-metering based solar PV System as set out in the Bidding Documents and any Variation to such document.

1.1.3(A) "Employer Design" means the design of the net-metering based solar PV System as set out in the Bidding Documents and any Variation to such design.

1.1.3(B) "Contractor Design" means the design of the net-metering based solar PV System, prepared and submitted by the Contractor to the Employer under this Contract, based on the specifications of the offered equipment which design shall be in conformity with the Employer Design.

Persons

1.1.4 "Employer" means the person named in the Contract Data and the legal successors in title to this person, but not (except with the consent of the Contractor) any assignee.

1.1.5 "Contractor" means the person named in the Contract Data whose Bid has been accepted by the Employer and the legal successors in title to such person, but not (except with the consent of the Employer) any assignee of such person.

1.1.6 "Party" means either the Employer or the Contractor.

Dates, Times and Periods

1.1.7 "Commencement Date" means the date as mentioned in the Contract Data.

1.1.8 "Day" means a calendar day.

1.1.9 "Time for Completion" means the time for completion of the Works as stated in the Contract Data (or as extended under Sub-Clause 7.3), calculated from the Commencement Date.

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Money and Payments

1.1.10 "Cost" means all expenditure properly incurred (or to be incurred) by the Contractor, whether on or off the Site, including overheads and similar charges but does not include any allowance for profit.

Other Definitions

1.1.11 "Contractor's Equipment" means all machinery, apparatus and other things required for the execution of the Works but does not include Materials or System intended to form part of the Works.

1.1.12 "Country" means the Islamic Republic of Pakistan.

1.1.13 "Employer's Risks" means those matters listed in Sub-Clause 6.1.

1.1.14 "Force Majeure" means an event or situation beyond the control of a Party that is not foreseeable, is unavoidable and its origin is not due to negligence or lack of care on the part of such Party. Such events subject to the conditions as stated in the preceding sentence may include, but not be limited to, wars or revolutions, fires, floods, epidemics, quarantine restrictions, and freight embargoes.

1.1.15 "Materials" means things of all kinds (other than System) to be supplied and incorporated in the Works by the Contractor.

1.1.16 "System" means the machinery and apparatus intended to form or forming part of the Works.

1.1.17 "Site" means the place mentioned in the Contract Data where the Works are to be executed, and any other place(s) specified in the Contract as forming part of the Site.

1.1.18 0"Variation" means a change which is instructed by the Employer under Sub-Clause 10.1.

1.1.19 'Works" means any or all the works including design, supply, installation, construction, testing, commissioning& O&M of the System to be performed by the Contractor including temporary works and any Variation thereof.

1.1.20 "Engineer" means a qualified engineer/engineering firm appointed by the Employer to act as independent engineer for the purpose of the Contract for review of the Contractor Design, equipment inspection and verification of installed System.

1.1.21 "Letter of Acceptance" means the formal acceptance by the Employer of the Tender.

1.1.22 "Tender" means the Contractor's priced offer to the Employer for the

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execution and completion of the Works and the remedying of any defects therein in accordance with the provisions of the Contract, as accepted by the Letter of Acceptance.

1.2 **Interpretation**

Words importing persons or parties shall include firms and organizations. Words importing singular or one gender shall include plural or the other gender where the context requires.

1.3 **Priority of Documents**

The documents forming the Contract are to be taken as mutually explanatory of one another. If an ambiguity or discrepancy is found in the documents, the priority of the documents shall be in accordance with the order as listed in the General Provisions of the Conditions of Contract.

1.4 **Law**

The rights and obligations of the Parties under the Contract shall be governed by laws of the Islamic Republic of Pakistan.

1.5 **Communications**

All Communications related to the Contract shall be in English language.

1.6 **Statutory Obligations**

The Contractor shall comply with the laws of the Islamic Republic of Pakistan and shall give all notices and pay all fees and other charges in respect of the Works.

2. THE EMPLOYER

2.1 **Provision of Site**

The Employer shall provide the Site and right of access thereto at the times stated in the Contract Data.

2.2 **Permits etc.**

The Contractor shall be exclusively responsible to apply for and obtain net metering license from NEPRA if so applicable. The Employer shall, if requested by the Contractor, assist him in applying for permits, licenses or approvals which are required for the Works.

2.3 **Employer's Instructions**

The Contractor shall comply with all instructions given by the Employer, in respect of the Works including the suspension of all or part of the

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Works.

2.4 **Approvals**

No approval or consent or absence of comment by the Employer shall affect the Contractor's obligations required under the Contract.

3. EMPLOYER'S REPRESENTATIVES

The Employer shall appoint with precise scope of authority and notify in writing a duly authorized person to act for him and on his behalf for the purposes of this Contract. The details and precise scope of the authority of such authorized person shall be notified in writing to the Contractor immediately after the signing of the Contract.

4. THE CONTRACTOR

4.1 **General Obligations**

The Contractor shall carry out the Works as per the highest standards of workmanship in the solar industry and in accordance with the terms and conditions of the Contract. The Contractor shall provide all supervision, labour, materials, plant and Contractor's equipment which may be required for the execution of the Works and shall also arrange all permits and licenses at his own cost, required for installation, commissioning and operation of the System.

For avoidance of doubt, the Contractor shall arrange bi-directional meter for the System and bear all related costs.

4.2 **Contractor's Representative**

The Contractor shall appoint a representative at site on full time basis to supervise the execution of Works and to receive instructions on behalf of the Contractor but only after obtaining the consent of the Employer for such appointment which consent shall not be unreasonably withheld by the Employer. Such authorized representative may be substituted / replaced by the Contractor at any time during the Contract Period but only after obtaining the consent of the Employer as aforesaid.

4.3 **Subcontracting**

The Contractor shall not subcontract the whole of the Works. The Contractor may subcontract any part of the Works subject to restriction stipulated in the Contract Data.

4.4 **Performance Security**

The Contractor shall furnish to the Employer within seven (07) working days after receipt of Letter of Acceptance a Performance Security, in the

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form of irrevocable & unconditional Bank Guarantee from any Scheduled Bank of Pakistan acceptable to the Employer for the amount and validity specified in Contract Data.

5. DESIGN BY CONTRACTOR

5.1 Submission and Approval of Contractor Design

The Contractor shall promptly submit the Contractor Design to the Employer for approval. Within seven (7) days of receipt, the Employer shall notify any comments or, if the design submitted is not in accordance with the Contract, shall reject it stating the reasons. The Contractor shall not construct any element of the Works designed by him within seven (7) days after the design has been submitted to the Employer or which has been rejected. Design that has been rejected shall be promptly amended and resubmitted.

5.2 Responsibility for Design

Notwithstanding that the Contractor Design is submitted and approved by the Employer, the Contractor shall solely remain responsible for his rendered design under this Contract, which shall not only be in strict conformity with the Employer Design and Specifications but also be fit for the intended purposes defined in the Contract. In addition, the Contractor shall also be solely responsible for any infringement of any patent or copyright in respect of such design.

6. EMPLOYER'S RISKS

6.1 The Employer's Risks

The Employer's Risks are: -

a) politically motivated riot, commotion or disorder by persons other than the Contractor's personnel and other employees including the personnel and employees of Sub-Contractors, directly affecting the Site and/or the Works**;**

b) use or occupation by the Employer of any part of the Works, except as may be specified in the Contract**;**

c) late handing over of Site;

d) a suspension under Sub-Clause 2.3 unless it is attributable to the Contractor's failure; and

e) physical obstructions or physical conditions other than climatic conditions, encountered on the Site during the performance of the Works, for which the Contractor immediately notified to the Employer and accepted by the Employer.

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6.2 Loss or Damage due to Employer's Risks

In the event of any such loss or damage happening from any of the risks defined in Sub-Clause 6.1 or force majeure, or in combination with other risks, the Contractor shall, if and to the extent required by the Employer, rectify the loss or damage and the Employer shall determine an addition to the Contract Price in accordance with Clause 10 and shall notify the Contractor accordingly. In the case of a combination of risks causing loss or damage any such determination shall take into account the proportional responsibility of the Contractor and the Employer.

7. TIME FOR COMPLETION

7.1 Execution of the Works

The Contractor shall commence the Works on the Commencement Date and shall proceed expeditiously and without delay and shall complete the Works, subject to Sub-Clause 7.3 below, within the Time for Completion as stated in the Contract Data.

7.2 Programme

Within the time stated in the Contract Data, the Contractor shall submit to the Employer a detailed programme for the Works incorporating the dates, which programme shall be in-line with the Proposed Construction Schedule submitted along with the Bid.

7.3 Extension of Time

The Contractor shall, within such time as may be reasonable under the circumstances, notify the Employer of any event(s) falling within the scope of Sub-Clause 6.1 or 10.3 of these Conditions of Contract and request the Employer for a reasonable extension in the time for the completion of Works. Subject to the aforesaid, the Employer shall determine such reasonable extension in the time for the completion of Works as may be justified in the light of the details/particulars supplied by the Contractor in connection with the such determination by the Employer within such period as may be prescribed by the Employer for the same; and the Employer shall extend the Time for Completion as determined.

7.4 Late Completion

If the Contractor fails to complete the Works within the Time for Completion, the Contractor's only liability to the Employer for such failure shall be to pay the amount stated in the Contract Data for each day for which he fails to complete the Works.

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8. TAKING-OVER

8.1 Notice of Completion by the Contractor

The Contractor shall notify in writing to the Employer when he considers that the Works are complete in all aspects.

8.2 Taking-Over Notice

Within ten (10) days of receipt of notice of completion from the Contractor, the Engineer shall determine the conformity of the installed System with the approved Contractor Design and notify the Contractor through Employer that the Works are complete in accordance with the Contract. The Employer shall take over the Works upon the issue of this notice and issue Taking Over Certificate to the Contractor.

Alternatively, the Contractor shall be notified that the Works are not ready for taking over, stating the reasons accordingly. The Contractor shall then promptly complete any outstanding work and, subject to Clause 9, clear the site.

8.3 Defect Liability Period

Defect Liability Period shall be as stated in the Contract Data.

9. REMEDYING DEFECTS

9.1 Remedying Defects

The Employer may at any time prior to the expiry of the Defects Liability Period stated in the Contract Data, notify the Contractor of any defects. The Contractor shall remedy at no cost to the Employer any defects due to the Contractor Design, Materials, System or workmanship not in accordance with the Contract.

The Cost of remedying defects attributable to any other cause shall be valued as a Variation. Failure to remedy any such defects or complete outstanding work within a reasonable time shall entitle the Employer to carry out all necessary works at the Contractor's cost.

9.2 Uncovering and Testing

The Employer may give instruction as to the uncovering and/or testing of any work. Unless as a result of an uncovering and/or testing it is established that the Contractor Design, Materials, System or workmanship are in accordance with the Contract, the Contractor shall be paid for such uncovering and/or testing as a Variation in accordance with Sub-Clause 10.2.

9.3 The Contractor at his own responsibility shall arrange all hoisting and

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fixing equipment necessary for the satisfactory completion of work and shall make good any damage to the existing surface.

10. VARIATIONS AND CLAIMS

10.1 Right to Vary

The Employer may instruct Variations.

10.2 Valuation of Variations

Variations shall be valued at a lump sum price mutually agreed between the Parties.

10.3 Early Warning

The Contractor shall notify the Employer in writing as soon as he is aware of any circumstance which may delay or disrupt the Works, or which may give rise to a claim for additional payment.

To the extent of the Contractor's failure to notify, which results to the Employer being unable to keep all relevant records or not taking steps to minimize any delay, disruption, or Cost, or the value of any Variation, the Contractor's entitlement to extension of the Time for Completion or additional payment shall be reduced/rejected.

10.4. Valuation of Claims

If the Contractor incurs Cost as a result of any of the Employer's Risks, the Contractor shall be entitled to the amount of such Cost. If as a result of any Employer's Risk, it is necessary to change the Works, this shall be dealt with as a Variation subject to Contractor's notification for intention of claim to the Employer within fourteen (14) days of the occurrence of cause.

10.5 Variation and Claim Procedure

The Contractor shall submit to the Employer an itemized make-up of the value of Variations and claims within twenty-one (21) days of the instruction or of the event giving rise to the claim. The Employer shall check and if possible, agree the value. In the absence of agreement on the claim, the Employer shall determine the value.

11. CONTRACT PRICE AND PAYMENT TERMS

11.1 Contract Price

The Contractor shall be entitled to be paid at the value of the works intervals: a) the value of the Works executed; and b) The percentage of the value of Materials and Plant reasonably delivered to the Site, as stated in the Contract Data, subject to any additions or deductions which may be due. The Contractor shall submit each month to the Engineer/Employer a

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statement showing the amounts to which he considers himself entitled.

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11.2 Payment Terms and Statements

Subject to the terms and conditions of the Contract, the Contractor shall be entitled to be paid the Contract Price at such intervals as given in the Contract Data. Within a period not exceeding seven (7) days from the date of submission of a statement for interim payment by the Contractor, the Engineer shall verify the same and within a period not exceeding thirty (30) days from the said date of submission by the Contractor, the Employer shall pay to the Contractor the sum verified by the Engineer less retention money at the rate stated in the Contract Data.

11.3 Retention

Retention money will be deducted from each payment and will be released within 14 days after successful completion of Defect Liability period(DLP), or the completion of outstanding work, all as referred to in Sub-Clause 9.1, whichever is the later.

11.4 Final Payment

Within twenty-one (21) days from the date of issuance of the Maintenance Certificate the Contractor shall submit a final account to the Engineer to verify and the Engineer shall verify the same within fourteen (14) days from the date of submission and forward the same to the Employer together with any documentation reasonably required to enable the Employer to ascertain the final contract value. Within sixty (60) days from the date of receipt of the verified final account from the Engineer, the Employer shall pay to the Contractor any amount due to the Contractor. While making such payment the Employer may, for reasons to be given to the Contractor in writing, withhold any part or parts of the verified amount.

12. DEFAULT

12.1 **Default by Contractor**

If the Contractor abandons the Works, refuses or fails to comply with a valid instruction of the Employer or fails to proceed expeditiously and without delay, or is, despite a written complaint, in breach of the Contract, the Employer may give notice referring to this Sub-Clause and stating the default.

If the Contractor has not taken all practicable steps to remedy the default within seven(07) days after receipt of the Employer's notice, the Employer may by a second notice given within a further fourteen(14) days, terminate the Contract. The Contractor shall then immediately demobilize from the Site leaving behind any and all Contractor's Equipment which the Employer instructs, in the second notice, to be used for the completion of the Works at the risk and cost of the Contractor.

12.2 **Default by Employer**

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If the Employer fails to pay in accordance with the Contract, or is, despite a written complaint, in breach of the Contract, the Contractor may give notice referring to this Sub-Clause and stating the default. If the default is not remedied within fourteen (14) days after the Employer's receipt of this notice, the Contractor may suspend the execution of all or parts of the Works.

12.3 **Insolvency**

If a Party is declared insolvent under any applicable law, the other Party may by notice terminate the Contract which shall be effective fourteen (14) days after receipt of notice by the other party. The Contractor shall then immediately demobilize from the Site leaving behind, in the case of the Contractor's insolvency, any Contractor's Equipment which the Employer instructs in the notice is to be used for the completion of the Works.

12.4 **Payment upon Termination**

After termination, the Contractor shall be entitled to payment of the unpaid balance of the value of the Works executed and of the Materials and System reasonably delivered to the Site, adjusted by the following:

a) any sums to which the Contractor is entitled under Sub-Clause 10.4,

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b) any sums to which the Employer is entitled,

c) if the Employer has terminated under Sub-Clause 12.1 or 12.3, the Employer shall be entitled to a sum equivalent to twenty percent(20%) of the value of parts of the Works not executed at the date of the termination, and

d) if the Contractor has terminated under Sub-Clause 12.2 or 12.3,the Contractor shall be entitled to the cost of his demobilization together with a sum equivalent to ten percent(10%) of the value of parts of the Works executed at the date of termination.

The net balance due shall be paid or repaid within twenty-eight (28) days of the notice of termination.

13. RISKS AND RESPONSIBILITIES

13.1 Contractor's Care of the Works

The Contractor shall take full responsibility for the care of the Works from the Commencement Date until the date of the Employer's issuance of Certificate of Completion under Sub-Clause 8.2. Responsibility shall then pass to the Employer. If any loss or damage happens to the Works during the above period, the Contractor shall rectify such loss or damage so that the Works conform with the Contract.

Unless the loss or damage happens as a result of any of the Employer's Risks, the Contractor shall indemnify the Employer, or his agents against all claims loss, damage and expense arising out of the Works.

13.2 Force Majeure

If Force Majeure occurs, the Contractor shall notify the Employer immediately. If necessary, the Contractor may suspend the execution of the Works and, to the extent agreed with the Employer demobilize the Contractor's Equipment.

If the event continues for a period of eighty-four (84) days, either Party may then give notice of termination which shall take effect twenty-eight (28) days after the giving of the notice.

After termination, the Contractor shall be entitled to payment of the unpaid balance of the value of the Works executed and of the Materials and System reasonably delivered to the Site, adjusted by the following:

a) any sums to which the Contractor is entitled under Sub-Clause 10.4,

b) the cost of his demobilization, and

c) less any sums to which the Employer is entitled.

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The net balance due shall be paid or repaid within thirty-five (35) days of the notice of termination.

14. INSURANCE

At all times during the execution of the Works, the Contractor shall maintain property insurance on the System for the replacement cost thereof, except for items (a) to (e) of the Employer's Risks.

15. RESOLUTION OF DISPUTES

15.1 Employer's Decision

If a dispute of any kind whatsoever arises between the Employer and the Contractor in connection with the Works, the matter in dispute shall, in the first place, be referred in writing to the Employer. Such reference shall state that it is made pursuant to this Clause. No later than the twenty-eight (28) days after the day on which he received such reference, the Employer shall give notice of his decision to the Contractor.

Unless the Contract has already been repudiated or terminated, the Contractor shall, in every case, continue to proceed with the Works with all due diligence, and the Contractor shall give effect forthwith to every such decision of the Employer unless and until the same shall be revised, as hereinafter provided in an arbitral award.

15.2 Notice of Dissatisfaction

If the Contractor is dissatisfied with the decision of the Employer or if no decision is given within the time set out in Sub-Clause 15.1 here above, the Contractor may give notice of dissatisfaction referring to this Sub-Clause within fourteen (14) days of receipt of the decision or the expiry of the time for the decision. If no notice of dissatisfaction is given within the specified time, the decision shall be final and binding on the Contractor. If notice of dissatisfaction is given within the specified time, the decision shall be binding on the Contractor who shall give effect to it without delay unless and until the decision of the Employer is revised by an arbitrator.

15.3 Arbitration

A dispute which has been the subject of a notice of dissatisfaction shall be finally settled as per provisions of Arbitration Act 1940 (Act No. X of 1940) and Rules made there under and any statutory modifications thereto. Any hearing shall be held at the place specified in the Contract Data and in the language referred to in Sub-Clause 1.5.

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16 INTEGRITY PACT

16.1 If the Contractor, or any of his Sub-Contractors, agents or servants is found to have violated or involved in violation of the Integrity Pact signed by the Contractor as Appendix-E to his Bid, then the Employer shall be entitled to:

(a) recover from the Contractor an amount equivalent to ten times the sum of any commission, gratification, bribe, finder's fee or kickback given by the Contractor or any of his Sub-Contractors, agents or servants;
(b) terminate the Contract; and
(c) recover from the Contractor any loss or damage to the Employer as a result of such termination or of any other corrupt business practices of the Contractor or any of his Sub-Contractors, agents or servants.

On termination of the Contract under Sub-Para (b) of this Sub-Clause, the Contractor shall immediately demobilize from the Site leaving behind Contractor's Equipment which the Employer instructs, in the termination notice, to be used for the completion of the Works at the risk and cost of the Contractor. Payment upon such termination shall be made under Sub-Clause 12.4, in accordance with Sub-Para (c) thereof, after having deducted the amounts due to the Employer under Sub-Para (a) and (c) of this Sub-Clause.

17. PRIORITY OF CONTRACT DOCUMENTS:

The priority list of contractual documents shall be as follows:

(a) Contract Agreement;
(b) Letter of Acceptance;
(c) Specifications and Employer's Design
(d) Contract Data;
(e) Conditions of Contract;
(f) Letters of Technical Bid and Price Bid;
(g) The priced Bill of Quantities; and
(h) The Appendices to Bid.

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CONTRACT DATA

Conditions of Contract

Sr. #	Description	Clause Conditions of Contract	Explanation
1.	Employer's name and address	1.1.4	COMSATS University Islamabad Attock Campus. represented by: Director COMSATS University Islamabad(CUI) Attock Campus University Road Farooq Azam Colony Attock City Punjab, Pakistan Tel: 057-9316330 Fax:…….
2.	Contractor's Name	1.1.5	[Name of the Successful Bidder]
3.	Commencement Date	1.1.7	Commencement Date shall be the date when all of the following conditions have been fulfilled: 1. The Contractor has submitted to the Employer the advance payment guarantee in accordance with the terms of Conditions of the Contract; and 2. The Employer has paid the Contractor the advance payment.
4.	Site	1.1.17	COMSATS University Islamabad(CUI) Attock Campus University Road Farooq Azam Colony Attock City Punjab, Pakistan
5.	Engineer's name and address	1.1.20	Reactor COMSATS University Islamabad(CUI) Chak Shahzad Islamabad, Pakistan Tel:051-9049517-1 Fax:

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Sr. #	Description	Clause Conditions of Contract	Explanation
6.	Provision of site	2.1	Site access shall be given within 02 days of signing of Contract whereas the complete site shall be handed over to the Contractor, for supply and Installation of PV Modules, Module Mounting Structures, DC cables and allied accessories, trenches and backfilling etc. after the following pre-requisites are complete: 1. Equipment designs and layout plans have been duly approved by the Engineer. 2. PV Modules and DC cables have been delivered and inspected by the Engineer at the project site. 3. Module mounting structure has been inspected and verified by the Engineer at the factory / warehouse. The installation works shall be completed by the Contractor within a time period of 06 Months from the date the site is handed over to the Contractor.
7.	Subcontracting	4.3	The aggregate amount of the works subcontracted shall not exceed 40% of the Contract Price.
8.	Amount of Performance Security	4.4	Ten (10%) in the form of bank guarantee of Contract Price stated in the Letter of Acceptance.
9.	Validity of Performance Security	4.4	Validity of Performance Security shall be thirteen (13) months from the issuance of Taking Over Certificate (TOC) and, if not en cashed pursuant to the terms of the Contract, shall be returned within fourteen (14) days of its expiry.
10.	Time for Completion	7.1	One Hundred and Eighty (180) daysfrom the Commencement Date.
11.	Time for furnishing Programme	7.2	Within seven (7) days from the date of receipt of Letter of Acceptance.
12.	Amount of Liquidated Damages	7.4	The rate of the Liquidated Damages (LD) shall be 0.27% of the Contract Price stated in the Letter of Acceptance for every day of delay in which whole or part of the work(s) remained unfurnished subject to a maximum of 10% of the Contract Price.
13	Defects Liability Period	8.3	One year calculated from the date of Taking Over Certificate issued by the Employer. Defect Liability Certificate shall be issued within 14 days after the expiry of the Defect Liability Period.
14.	Remedying Defect Period	9.1	Reasonable time is seven (07) days after notice of defect.

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Sr. #	Description	Clause Conditions of Contract	Explanation
15.	Contract Price	11.1	The Contract Price will on actual work basis as stated in the Letter of Acceptance.
16.	limit of Retention Money (as a percentage of the Contract Price)	11.3	Five percent (5%)

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Sr. #	Description	Clause Conditions of Contract	Explanation
16.	Payment Terms	11.1 11.2 11.4	**A. Payment on Delivery of Goods** **(i) 20% Payment** Site Survey & Approval of Design, Site Preparation (Clearance of ground, Civil work for PV Mounting Structure) and Supply and Installation of PV Mounting Structure **(ii) 30% Payment** Supply of Solar PV Modules at Site / Warehouse and Submission of approved test reports from Designated Laboratory**,** Supply of Equipment at Site / Warehouse (Inverters, Cables (AC & DC), Earthling Equipment and Allied Accessories) and Installation of Solar Modules at Site **(iii) 30% Payment** Installation of Invertors, Cabling, Earthing Equipment and Allied Accessories) and Complete Installation and Commissioning along with real time as well as online monitoring access **(iv) 10% Payment** Upon installation of Bi-Directional Meter (Net Billing) after following due process with DISCO, NEPRA, IESCO and other stakeholders and Rectification of Punch List, the contractor will ensure timely licensing and Training of Designated Official of CUI Staff for Operation and Maintenance (O & M) **(xi) 10% Payment** Submission of Final Report after successful completion of the Project (the contractor will ensure timely licensing)and upon submission of Performance Security against O&M *Note: All of the above payments shall be made after deduction of taxes as per the applicable Law.*

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Sr. #	Description	Clause Conditions of Contract	Explanation
17.	Place of Arbitration	15.3	Attock

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LETTER OF TECHNICAL BID

Date: ----------
Bid Reference No: _____

Supply, Installation, Testing, Commissioning & O&M of 400 kW on grid Solar PV System.

To:
Director
COMSATS University Islamabad (CUI) Attock Campus
University Road Farooq Azam Colony
Attock City Punjab,
Pakistan.

We, the undersigned, declare that:

(a) We have examined and have no reservations to the Bidding Documents, including Addenda issued in accordance with instructions to Bidders (IB) 9;

(b) We offer to execute and complete in conformity with the Bidding Documents the Works (as defined in the Bidding Documents);

(c) Our Bid consisting of the Technical Bid and the Price Bid shall be valid for a period of one hundred and twenty days (120) days from the date fixed for the bid submission deadline in accordance with the Bidding Documents, and it shall remain binding upon us and may be accepted at any time before the expiration of that period;

(d) As security for due performance of the undertakings and obligations of our bid, we hereby submit a Bid Security, in the amount specified in Bidding Data, which is valid (at least) thirty (30) days beyond validity of Bid itself;

(e) We confirm that our Bid is not in deviation of any technical and commercial terms as provided in the Bidding Documents;

(f) We are not participating, as a Bidder or as a subcontractor, in more than one bid in this bidding process; and

(g) We agree to permit Employer or its representative to inspect our accounts and records and other documents relating to the bid submission and to have them audited by auditors. This permission is extended for verification of any information provided in our Technical Bid which comprises all documents enclosed herewith in accordance with IB11.1of the Bidding Data.

Name----------

In the Capacity of ----------

Signed----------

Duly authorized to sign the Bid for and on behalf of:----------

Date:----------
Address:----------

Letter of Technical Bid

LETTER OF PRICE BID

Date: _____
Bid Reference No: _____

Supply, Installation, Testing, Commissioning & O&M of 400 kW On grid Solar PV System.

To:

Director
COMSATS University Islamabad (CUI) Attock Campus
University Road Farooq Azam Colony
Attock City Punjab,
Pakistan.

We, the undersigned, declare that:

a. We have examined and have no reservations to the Bidding Documents, including Addenda issued in accordance with instructions to Bidders (IB)9;

b The total price of our Bid, including any discounts offered, is PKR [●];

c Our Bid shall be valid for a period of One Hundred and twenty Days (120) days from the date fixed for the bid submission deadline in accordance with the Bidding Documents, and it shall remain binding upon us and may be accepted at any time before the expiration of that period;

d If our Bid is accepted, we commit to obtain and post a Performance Security in accordance with the Bidding Documents;

e We understand that this bid, together with your written acceptance thereof included in your notification of award, shall constitute a binding contract between us, until a formal contract is prepared and executed and we do hereby declare that the Bid is made without any collusion, comparison of figures or arrangement with any other bidder for the works;

f We understand that you are not bound to accept the lowest evaluated bid or any other bid that you may receive; and

g If awarded the contract, the person named below shall act as Contractors Representative.

Name ----------
In the capacity of ----------
Signed ----------
-
Duly authorized to sign the Bid for and on behalf of ----------
-
Date ----------
Address ----------

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APPENDICES TO BID

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Appendix-A to Bid

PROPOSED CONSTRUCTION SCHEDULE

[Please note that the Works shall be completed within the time period stated in the Contract Data. The Bidder shall provide as Appendix-A to Bid, the Construction Schedule in the bar chart (CPM, PERT or any other to be specified herein) showing the sequence of work items and the period of time during which he proposes to complete each work item in such a manner that his proposed programme for completion of whole of the Works and parts of the Works shall not exceed the time period specified in the Contract Data. Such period shall commence and counted from the Commencement date as specified in the Contract Data.]

It shall be mandatory for the successful bidder to follow the project completion timelines of 26 weeks (180 days) for installation of Module Mounting Structure, PV Modules, Cable Laying and Backfilling at the Project site. Required implementation plan must include the following:

Sr. No.	**Project Activity**	**Timelines (180calendar days)**		
		Month 1&2	**Month 3&4**	**Month 5&6**
1	Design Review and Approval by Engineer			
2	Delivery of PV Modules at Project Site and Verified by the Engineer			
3	Mounting Structure Fabrication and Inspection at Factory / Warehouse			
4	Delivery of DC Cables at Project Site			
5	Installation of Mounting Structure, PV Modules, DC Cables and Backfilling etc.			
6	Delivery of Inverters and AC Cables and Verified by the Engineer			
7	Delivery of Balance of System and verified by the Engineer			
8	100% Installation Completion, Testing and Commissioning			

Note: For Sr. No. 5, car parking area of the site shall be handed over for 06 weeks only (mandatory requirement). Pre-requisites for Sr. No. 5 are Sr. No. 1, 2,3 and 4.

Note: In case of non-compliance with the above in Bidder's proposed construction schedule, the bid shall be considered as non-compliant.

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Appendix-B to Bid

LIST OF SUBCONTRACTORS

[Name of Bidder] intend to subcontract the following parts of the Works to subcontractors. We hereby confirm that the subcontractors named hereunder are reliable and competent to perform that part of the Works for which each is listed.

Please find enclosed the documentation outlining experience of the subcontractors, the curriculum vitae and experience of their key personnel who will be assigned to the Contract, equipment to be supplied by them, size, location and type of contracts carried out in the past.

Part of Works (Give Details)	**Subcontractor (With Complete Address)**	**Statement of similar works previously executed (attach evidence)**
1	**2**	

Note:

1. No change of Sub-Contractors shall be made by the Bidder without prior approval of the Employer.

2. The truthfulness and accuracy of the statement as to the experience of Sub-Contractors is guaranteed by the Bidder. The Employer's judgment shall be final as to the evaluation of the experience of Sub-Contractors submitted by the Bidder.

3. Statement of similar works shall include description, location & value of works, year completed and name & address of the clients.

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Appendix-C to Bid

PAST EXPERIENCEAND FINANCIAL STRENGTH

Please provide requisite documentary evidence to substantiate the past experience and financial strength of the Bidder for evaluation as per the Qualification Criteria given below:

Sr. #	Category	Criteria	Required Documents
I.	Experience Record	Net-metering based solar PV project(s) completed in last two-year (as lead partner contractor, JV having cumulative capacity of 1,500 kW or above including a single site net metered installation of 400 kW or above	As per EXP-1 Form
II.	Financial Strength	Average Annual Turnover of minimum PKR 100 million in last three years.	Audited Financial Reports of last two years
		Minimum average Net Worth of PKR 60 million in last three years.	

Note:

i. Qualification status shall be decided on Pass / Fail basis.

ii. In case of JV, all the members shall collectively comply/qualify the Qualification requirements as specified above.

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Form EXP-1:
Details of Contracts of Similar Nature and Complexity

Name of Bidder or partner of a joint venture

Use a separate sheet for each contract

1.	Name of Contract
	Country
2.	Name of Employer
3.	Employer Address & Contact Details
4.	Nature of Works
5.	Contract Role (Tick One) (a)Sole Contractor (b)Sub-Contractor (c)Partner in a Joint Venture
6.	Capacity (kW) &Value (PKR) of the total contract.
7.	Date of Award
8.	Date of Completion
9.	Contract Duration(Years and Months)

Note: The Bidder shall attach documentary evidence (contract agreement& completion certificate) to substantiate the above facts/data.

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Appendix-D to Bid

JOINT VENTURE AGREEMENT

[Please provide certified true copy of Joint Venture (JV) Agreement, if applicable.]

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Appendix-E to Bid

INTEGRITY PACT

DECLARATION OF FEES, COMMISSION AND BROKERAGE ETC. PAYABLE BY THE SUPPLIERS OF GOODS, SERVICES & WORKS IN CONTRACTS WORTH RS. 10.00 MILLION OR MORE

Contract No._____Dated _____
Contract Value: As per Letter of Price Bid
Contract Title: _____

…… [name of Contractor] hereby declares that it has not obtained or induced the procurement of any contract, right, interest, privilege or other obligation or benefit from Government of Pakistan (GoP) or any administrative subdivision or agency thereof or any other entity owned or controlled by GoP through any corrupt business practice.

Without limiting the generality of the foregoing, [name of Contractor] represents and warrants that it has fully declared the brokerage, commission, fees etc. paid or payable to anyone and not given or agreed to give and shall not give or agree to give to anyone within or outside Pakistan either directly or indirectly through any natural or juridical person, including its affiliate, agent, associate, broker, consultant, director, promoter, shareholder, sponsor or subsidiary, any commission, gratification, bribe, finder's fee or kickback, whether described as consultation fee or otherwise, with the object of obtaining or inducing t0he procurement of a contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoP, except that which has been expressly declared pursuant hereto.

[name of Contractor] certifies that it has made and will make full disclosure of all agreements and arrangements with all persons in respect of or related to the transaction with GoP and has not taken any action or will not take any action to circumvent the above declaration, representation or warranty.

[name of Contractor] accepts full responsibility and strict liability for making any false declaration, not making full disclosure, misrepresenting facts or taking any action likely to defeat the purpose of this declaration, representation and warranty. It agrees that any contract, right, interest, privilege or other obligation or benefit obtained or procured as aforesaid shall, without prejudice to any other rights and remedies available to GoP under any law, contract or other instrument, be voidable at the option of GoP.

Notwithstanding any rights and remedies exercised by GoP in this regard, [name of Contractor] agrees to indemnify GoP for any loss or damage incurred by it on account of its corrupt business practices and further pay compensation to GoP in an amount equivalent to ten time the sum of any commission, gratification, bribe, finder's fee or kickback given by [name of Contractor] as aforesaid for the purpose of obtaining or inducing the procurement of any contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoP.

Name of Employer: ……	Name of Contractor: ……
Signature: ……	Signature: ……
[Seal]	[Seal]

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Appendix-F to Bid

PROOF OF PURCHASE OF BIDDING DOCUMENTS

[Please provide copy of purchase of Bidding Documents from the Employer]

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Appendix-G

COPY OF PPIBCERTIFICATE

[Please provide copy of valid PEC Certificate issued with required code of as mentioned]

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Appendix-H

DECLARATION OF BENEFICIAL OWNERS

The "**Declaration of Beneficial Owners**" Information of Public Procurement Contract Awarded Regulations, 2022" require that all procuring agencies while engaging in public procurement contract worth Rs. 60 Million and above shall make a mandatory provision of beneficial ownership information of the company in the said contract as prescribed in following proforma to these regulations. The procuring agencies while entering into such contracts shall publicize the beneficial ownership information of the company on PPRA's website. The procuring agency shall forward all such contracts containing the beneficial ownership information to the Authority for placing it on PPRA's website. Accordingly, if applicable, the following performa shall be submitted by the bidders along with the Technical Bid.

DECLARATION OF ULTIMATE BENEFICIAL OWNERS INFORMATION FOR PUBLIC PROCUREMENT CONTRACTS.

1. Name _____
2. Father's Name / Spouse's Name _____
3. CNIC / NICOP / Passport No. _____
4. Nationality _____
5. Residential Address _____
6. Email Address _____
7. Date on which shareholding control or interest acquired in the business _____
8. In case of indirect shareholding control or interest being exercised through intermediary companies, entries or other legal persons or legal arrangements in the chain of ownership or control following additional particulars to be provided:

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1	2	3	4	5	6	7	8	9	10
Name	Legal form (company)/ Limited Liability partnership / association of persons / Single Member company / Partnership firm / trust any other Individual Body corporate (to be specified)	Date of incorporation / registration	Name of registering authority	Business Address	Country	Email Address	Percentage Of Shareholding control or interest of BO in the legal person or legal Arrangement	Percentage Of Shareholding control or interest of legal person or legal Arrangement in the Company	Identity of natural person who ultimately owns or controls the legal person or arrangement

9. Information about the Board of Directors (Details shall be provided regarding number of shares in the capital of the company as set opposite respective names).

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1	2	3	4	5	6	7	8
Name and Surname (in Block Letters)	CNIC No. (in case of foreigner passport No)	Father's / Husband's name in full	Current Nationality	Any other Nationality (ies)	Occupation	Residential address in full of the registered / principal office address for a subscribers other than natural person	Number of shares taken by cash subscriber (in figures and words)

10. Any other information incidental to or relevant to Beneficial owner(s)

Name and Signature
(Person authorized to issue notice on behalf of the company)

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Appendix-I

AFFIDAVIT OF BLACKLISTING

[Please provide an affidavit that the bidder has not been debarred/ blacklisted by the Employer, Government/Semi Government/Public Departments, a foreign country, international organization or other foreign institution sat the time of submission of bid.]

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Appendix-J

SPECIFIC SYSTEM DATA CHECKLIST

The specific System data checklist to be filled by the Bidders is given below for Bidders to confirm:

Specific Plant Data For 03xAcademic Block At CUI Attock Campus (400 kW)		
EQUIPMENT	**SPECIFICATIONS**	**Yes/No**
Solar PV Modules	IEC 61215 Certified	
	Application/ Safety Class II as per IEC 61730	
	N-Type Half Cut Cell	
	Tier 1 Manufacturer as per the most recent Bloomberg list, AAA or AA rated as per PV Module-Tech Ratings	
	650 W or higher with positive tolerance only	
	23% or higher module efficiency	
	25 Year Linear Performance Warranty	
	Anti-Reflective Coating	
	12 minimum Year Material and replacement warranty of panel	
	Power Output after 25 Years $\geq$ 85%	
	Potential Induced Discharge(PID) Resistant	
	Light Induced Degradation (LID) equal to 0.7%	
	Module Temperature Coefficient at P_{max} of -0.30%/^{o}C or better	
	Operating Temperature Range -40 to 85 ^{o}C	
	Barcode Identification	
	Efficiency at 200 W/m^2 $\geq$ 96% of STC	
	Report of Real Power at STC measured with AAA Class Sun Simulator at the factory to be provided	
	Compliance with S.R.O 604 defined Pre-shipment inspection requirements as per Govt of Pakistan	
Solar PV Mounting Structure	UV resistant, Hot Dip Galvanized Steel frame of Gauge 12 with 120 micron or thicker zinc coating or better (More details under the drawing attached)	
	Tilt 25$^{o\ to}$ 33° Degrees, Azimuth 290 w.r.t North to be determined from shadow analysis	
	Shall withstand wind speeds of 160 km/h	
	Galvanic Isolation	
	PV module fastening: As per module manufacturer guidelines	
	Rawal bolts: Stainless Steel (Grade-304) accompanied with epoxy resin backfilling for water proofing	
	Civil works for mounting structure shall be done to ensure the required strength as defined (More details under the drawing attached	

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